

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

MARINE TRANSPORT LOGISTICS, INC., *Complainant*

v.

CMA CGM, S.A., *Respondent*.

DOCKET NO. 22-23

Served: February 27, 2024

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER ON RESPONDENT'S MOTION FOR RECONSIDERATION AND SECOND REVISED SCHEDULING ORDER

On January 23, 2024, an order on Respondent's partial motion to extend discovery was issued, denying an indefinite extension to obtain discovery from a non-party. Respondent filed a notice of intent to enforce the non-party subpoena with a federal district court and the parties were advised to file a joint status report by February 15, 2024, if the discovery was not provided in time to meet the current deadlines. In addition, on January 31, 2024, an order on motions to compel was issued, requiring both parties to provide additional limited discovery by February 15, 2024.

On February 14, 2024, Respondent filed a motion for reconsideration seeking additional time to provide discovery of complaints from other clients of CMA regarding demurrage, detention, storage, and container roll-over charges in 2022. Respondent requested a 120-day extension unless the request is narrowed to "documents concerning complaints that it received in 2022 concerning U.S. exports that were diverted from one European country to another European country," in which case it seeks a 45-day extension. Motion at 7.

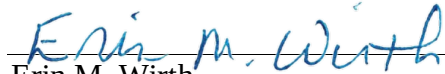
On February 15, 2024, Respondent filed a status report indicating that the parties could not reach agreement on language about the non-party subpoenas, that a deposition was scheduled for the non-party, and that requested non-party documents had not yet been produced. Respondent's Status Report at 2.

On February 26, 2024, Complainant filed a response to the motion for reconsideration and the status report, stating that Respondent had not produced any responsive documents regarding other complaints, the documents are related to the central allegations, and without seeing the documents, it would be impossible to determine whether production should be further limited. Response at 1-2. Complainant further contends that the non-party appeared for a deposition and that responsive documents were produced. Response at 2-3. Additionally, Complainant asserts that Respondent has not responded to its notice of deficiencies. Response at 2.

It appears that additional time may be required for the non-party to produce documents and for Respondent to provide responsive discovery. Respondent's argument is well taken that only 2022 complaints related to the alleged unreasonable practices would be relevant to this proceeding. Permitting discovery into areas that are not relevant only increases the expense and delay to both parties. Complainant does not identify additional practices which it asserts are unreasonable beyond those identified by Respondent. Therefore, it is reasonable to limit Respondent's discovery to 2022 complaints "concerning U.S. exports that were diverted from one European country to another European country." This discovery should be provided as soon as it is available. In addition, the non-party should provide any remaining discovery as soon as it is available so as to not further delay the proceeding. No new discovery requests may be served.

Accordingly, the parties are hereby **ORDERED** to follow this revised schedule, which provides the requested extension, with adjustments for holidays:

April 16, 2024	Discovery ends.
May 14, 2024	Complainant files brief, proposed findings of fact, and appendix.
June 12, 2024	Respondent files opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix.
June 27, 2024	Complainant files reply brief and responses to proposed findings of fact.


Erin M. Wirth
Chief Administrative Law Judge